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Provision of March 13, 2025
Register of provisions
n. 157 of March 13, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, Members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, on the protection of natural persons with respect to the
processing of personal data, as well as the free movement of such data and repealing Directive
95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD to the Code regarding the protection of personal data (Legislative Decree June 30,
2003, n. 196), as amended by Legislative Decree August 10, 2018 n. 101, containing provisions for the
adaptation of the national legislation to the aforementioned Regulation (hereinafter "Code");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the
Guarantor's Regulation n. 1/2000;

REPORTING Attorney Guido Scorza;

PREMISES

1. THE INSTRUCTIONAL ACTIVITY CARRIED OUT

With the report received by the Authority on April 7, 2023, Mr. XX complained about receiving an
unwanted call from IV Casa Firenze Sud di Benedetti Francesco & C. S.a.s. (hereinafter "IV Casa" and
"Company") which, in response to the request made via email by the interested party on April 5, 2023,
stated that it had obtained the contact data from Realmaps S.r.l. (hereinafter also "Realmaps" and
"supplier"). This supplier was the subject of a separate investigation conducted in April 2024, which
revealed several critical issues regarding the processing of personal data intended for real estate
agencies for marketing purposes (provision n. 11 of January 16, 2025, pending publication).

Considering, from what emerged in the documents, that IV Casa is included among the real estate
agencies to which Realmaps would have provided the data for promotional purposes, on May 14,
2024, the Office made a request for information (ref. prot. n. 58406/24), pursuant to Article 157 of the
Code, aimed primarily at clarifying the relationships with the aforementioned supplier and
understanding the compliance measures regarding the protection of personal data that the Company
has implemented concerning the acquired lists, with particular reference to:

- the verification of an original informed consent that authorized the use for commercial purposes;
- the information provided during the calls as well as the call script used;
- the verification in the Public Register of Oppositions of the contacted numbers;
- the management of opposition requests made by the interested parties.

In a communication dated May 30, 2024, the Company responded to the aforementioned request from
the Office, stating that it does not engage in telemarketing activities and that it makes phone contacts
solely to obtain information or confirmation of the willingness of potential clients to sell properties
owned; this circumstance also occurred in the case at hand. Therefore, "since it is not a telemarketing
activity," the Company claimed not to use a specific call script but to communicate, during the calls, the
reason for the contact.

Furthermore, IV Casa stated that it uses, for its activity of searching for potential clients, "a
management software operated by [...] XX, also a real estate brokerage company, which has direct

relationships with [...] Realmaps. The correct acquisition of consent for the processing of personal data – it added – is guaranteed by Realmaps at the contractual stage and, upon request, the same provides the relevant documentation [...]”. In this case, IV Casa - having not obtained the aforementioned documentation - following the communication from the Guarantor, made a prompt request for a response to Realmaps; on May 29, 2024, Realmaps stated that it had not yet received from the list provider the aforementioned documentation proving the consent of the complainant.

2. THE ALLEGATION OF VIOLATIONS

By note dated June 13, 2024 (prot. n. 0071990/24), the Company was informed of the initiation of the procedure, pursuant to Article 166, paragraph 5, of the Code, for the adoption of any measures under Article 58, paragraph 2, of the Regulation, recognizing IV Casa's responsibility for the alleged violation of the following provisions of the Regulation:

- Articles 5, paragraph 1, letter a), 6, paragraph 1, letter a), 7, 14 of the Regulation and Article 130, paragraphs 3 and 3 bis, of the Code for failing to verify or document the lawfulness of the data acquired from the supplier (information and consent) and for not having checked the Public Register of Oppositions for the contacted numbers;
 - Articles 5, paragraph 1, letter a) and 13 of the Regulation for failing to provide the interested parties with information on the processing of personal data since the Company stated that it does not use a call script for promotional contacts;
 - Articles 12 and 15 of the Regulation as the response to requests from interested parties regarding the processing of their personal data is subject to the necessary consultation with Realmaps, which holds such information, resulting in a potential delay in the fulfillment of the aforementioned requests and incomplete responses.
- satisfaction on the part of the applicant;
- Articles 5, paragraph 2, 24, and 25 of the Regulation for failing to prove compliance with obligations regarding personal data protection.

3. LEGAL ASSESSMENTS OF THE AUTHORITY

The Company did not submit any defensive memoranda, nor did it request to be heard by the Authority. Based on the factual profiles highlighted above and the statements made by IV Casa in response, for which the declarant is liable under Article 168 of the Code, it is deemed appropriate to confirm the violations identified in the notice of contestation.

Firstly, it is believed that, contrary to what the Company claimed in its response dated May 30, 2024, the phone call made to the reporting party's number has an unequivocally promotional purpose as it aims to propose the real estate intermediation service offered by IV Casa to potential sellers (in this case Mr. XX) and to potential buyers. The described case, therefore, related to an activity of soliciting new clients via telephone, can clearly be classified among the processing activities governed by Article 130 of the Code and having purposes not only of "sending advertising material or direct sales" but also of "conducting market research or commercial communications," as in the case of the report in question. The aforementioned regulation, in the formulation just mentioned, has effectively equated promotional communications with market research as both have a commercial purpose and advantage, especially in economic terms, for the client.

That being duly clarified, the Company has represented that it conducts customer research using a "management software," owned by a different legal entity – XX – which would directly maintain relationships with Realmaps. A check in the Business Register of the Chamber of Commerce revealed that both companies (IV Casa and XX) refer to the same managing director; this circumstance could explain the sharing of the database by the two aforementioned companies, especially in the absence of an agreement between the parties regulating the processing of data and the related purposes. It follows that, in any case, IV Casa has carried out processing operations (such as extraction, consultation, use, and deletion of data, pursuant to Article 4, point 2, of the Regulation) aimed at the commercial exploitation of the database through the dissemination of promotional messages for its services and products. Therefore, regarding the described database, the Company has demonstrated that it holds the role of joint controller, pursuant to Article 26 of the Regulation, having jointly

determined with XX the purposes (promotional) of the processing. According to the aforementioned Article 26 of the Regulation, "When two or more controllers jointly determine the purposes and means of processing, they are joint controllers of the processing [...]".

Regarding the promotional activity complained of in the report, the Company is to be considered the controller, pursuant to Article 4 of the Regulation, having concretely determined the purpose for which the processing was carried out (promotion of its services) and the telephone channel used for this purpose. The qualification of controller has been confirmed not only by the assurances of the deletion of data that the Company provided to the interested party in its response of April 7, 2023, but also by the request made by IV Casa to Realmaps, following the intervention of the Authority, aimed at obtaining documentation of the alleged consent given by the reporting party. This request, directed to Realmaps, would contradict the exclusivity of the relationship between the latter and XX, and would reveal a commercial agreement, which was not formalized in a contract, between Realmaps and IV Casa.

From the documents submitted, it does not appear that IV Casa, as the data controller, has provided documentation proving the existence of the legality requirements for the personal data acquired from Realmaps based on the guarantees offered by the latter in the contractual context to XX. In fact, based on such guarantees, which were not provided to IV Casa but exclusively to XX, there would have been, according to the Company, no need to exercise control over the acquired lists and the legality of the contacts transferred as they were allegedly "consented."

In particular, the Company did not verify, and therefore did not prove, the provision of information to the data subjects by the original controller who would have acquired the data, pursuant to Article 14 of the Regulation; similarly, it was not proven whether the alleged consent to the communication to third parties (including IV Casa) for marketing purposes was granted by the data subjects, nor was it verified whether such authorization met the requirements of freedom and specificity (as per Article 4, point 11, of the Regulation), with inevitable repercussions on the legitimacy of the Company's promotional activity.

Therefore, since the acquisition of prior free and specific consent for marketing has not been proven, the processing in question appears to have been carried out in the absence of the legal prerequisites for the promotional activity. In conclusion, the described processing has resulted in the execution of promotional communications without the informed consent of the data subjects, as the Company has not produced evidentiary responses capable of documenting its acquisition.

Consequently, it must be considered that the violation of Articles 5, paragraph 1, letter a), 6, paragraph 1, letter a), 7, 14 of the Regulation and Article 130 of the Code has been integrated, not...

****4. CONCLUSIONS****

In light of the arguments set forth in point 3 of this provision, the contested violations are deemed confirmed, and it is necessary to:

- Pursuant to Article 58, paragraph 2, letter f) of the Regulation, prohibit any further processing for promotional and commercial purposes carried out using lists acquired from Realmaps for which the Company does not have free, specific, and informed consent from the data subjects (Articles 6 and 7 of the Regulation, as well as Article 130 of the Code);
- Pursuant to Article 58, paragraph 2, letter d) of the Regulation, order the immediate deletion of said data, except for those that must be retained to comply with a legal obligation or to defend a right in judicial proceedings, as well as for any other purpose that does not require informed, free, specific, documented, and unequivocal consent from the data subject;
- Pursuant to Article 58, paragraph 2, letter d) of the Regulation, instruct the Company, should it intend to direct promotional activities in the future towards telephone numbers provided by third parties, to adopt appropriate procedures aimed at continuously verifying, including through adequate random checks, that personal data are processed in full compliance with the provisions regarding data protection.

(preventive acquisition of free, specific, unequivocal, documented, as well as informed consent from the data subjects for the sending of commercial communications) (Articles 6, 7, and 14 of the Regulation);

- pursuant to Article 58, paragraph 2, letter d) of the Regulation, to order, for the purposes of the information obligation referred to in Article 13 of the Regulation, to provide the data subjects with all the information provided therein;

- pursuant to Article 58, paragraph 2, letter d) of the Regulation, to order IV Casa to adopt appropriate technical and organizational measures to facilitate the exercise of the rights provided for by the data protection legislation and to satisfy, without unjustified delay, the related requests, including the right to object which may be raised "at any time" by the data subject.

Finally, with regard to the processing already carried out and considering the violations identified above, it is believed that the conditions exist for the application of an administrative pecuniary sanction pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation.

5. ORDER FOR THE IMPOSITION OF THE ADMINISTRATIVE PECUNIARY SANCTION

Based on the above, various provisions of the Regulation and the Code have been violated in relation to connected processing carried out by IV Casa, for which it is necessary to apply Article 83, paragraph 3, of the Regulation, according to which, if, in relation to the same processing or connected processing, a data controller violates, with intent or negligence, various provisions of the Regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation, resulting in the application of only the sanction provided for by Article 83, paragraph 5, of the Regulation.

For the purposes of quantifying the administrative sanction, the aforementioned Article 83, paragraph 5, in setting the maximum penalty at the sum of 20 million euros or, for companies, at 4% of the worldwide annual turnover of the previous financial year if higher, specifies the methods for quantifying the aforementioned sanction which must "in any case [be] effective, proportionate and dissuasive" (Article 83, paragraph 1, of the Regulation), identifying, for this purpose, a series of elements, listed in paragraph 2, to be evaluated when quantifying the related amount.

As aggravating circumstances to be considered in this case, the following must be taken into account:

1. the severity of the violations detected, particularly with regard to the negligent absence of sample checks of the numbers to be contacted acquired from the supplier, the inadequate management of requests to exercise the rights of the data subjects, as well as the lack of information during promotional phone calls (Article 83, paragraph 2, letter a of the Regulation);
2. the negligent nature of the conduct, since the rules for the protection of personal data were ignored by the data controller until the intervention of the Authority (Article 83, paragraph 2, letter b of the Regulation);
3. the inconsistency of the Company's conduct with the substantial regulatory activity of the Authority in the field of marketing, particularly with regard to the obligations of information and consent (Article 83, paragraph 2, letter k of the Regulation);
4. the inadequate cooperation with the supervisory Authority since the Company did not produce defensive documents that would allow for a complete assessment of the contested processing (Article 83, paragraph 2, letter f of the Regulation).

As mitigating elements, it is believed that the following can be taken into account:

1. the absence of previous proceedings initiated against the Company (Article 83, paragraph 2, letter e of the Regulation);
2. the nature of the data processed, consisting of common personal and contact data (Article 83, paragraph 2, letter g of the Regulation).

In an overall perspective of necessary balancing between the rights of the data subjects and the freedom of enterprise, it is necessary to prudently evaluate the aforementioned criteria, also in order to limit the economic impact of the sanction.

Therefore, it is believed that - based on the overall set of elements mentioned above - an administrative sanction of a payment of the sum of 10,000.00 euros (ten thousand/00) should be applied to IV Casa, equal to 0.05% of the maximum statutory sanction of 20 million euros.

In this case, it is also believed that the accessory sanction of publication on the website of the Authority of this provision, provided for by Article 166, paragraph 7, of the Code and Article 16 of the Regulation of the Authority No. 1/2019, should be applied.

In implementation of the principles of Article 83 of the Regulation, the imposition of this accessory sanction appears proportionate in relation to the severity and particular disvalue of the conduct subject to censure, with specific reference to the absence of adequate controls on the lists acquired from third parties and on the related obligations of information and consent of the data subjects for the processing of data for promotional purposes. This is regardless of the actual contacts made (the number of which has not been communicated), as even the mere collection of the data just described, although not usable, constitutes processing carried out in violation of the data protection legislation, resulting in a significant disvalue assessment of the conduct itself.

It is reminded that, pursuant to Article 170 of the Code, anyone who, being obliged, does not comply with this prohibition order on processing is punished with imprisonment from three months to two years and that, in case of non-compliance with the same order, the sanction referred to in Article 83, paragraph 5, letter e) of the Regulation is also applied administratively. Finally, the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers delegated to the Guarantor, for the annotation of the violations detected here in the internal register of the Authority, provided for by Article 57, paragraph 1, letter u) of the Regulation, are met.

ALL OF THE ABOVE, THE GUARANTOR

pursuant to Article 57, paragraph 1, letter f) of the Regulation, declares the processing described in the reasons carried out by IV Casa Firenze Sud di Benedetti Francesco & C. S.a.s., based in Via Francesco De Sanctis 32/34, 50136 Firenze (FI), VAT number 06832860487, unlawful; consequently:

a) pursuant to Article 58, paragraph 2, letter f) of the Regulation, prohibits any further processing for promotional and commercial purposes carried out through the lists acquired from Realmaps for which the Company does not have free, specific, and informed consent from the data subjects (Articles 6 and 7 of the Regulation, as well as 130 of the Code);

b) pursuant to Article 58, paragraph 2, letter d) of the Regulation, orders the immediate deletion of said data, except for those that must be retained for the fulfillment of a legal obligation or for the defense of a right in judicial proceedings as well as for any other purpose that does not require informed, free, specific, documented, and unequivocal consent from the data subject;

c) pursuant to Article 58, paragraph 2, letter d) of the Regulation, orders the Company, if it intends to direct promotional activity in the future towards telephone numbers provided by third parties, to adopt suitable procedures aimed at constantly verifying, including through appropriate sample checks, that personal data is processed in full compliance with the relevant provisions (prior acquisition of free, specific, unequivocal, documented, as well as informed consent from the data subjects for sending commercial communications) (Articles 6, 7, and 14 of the Regulation);

d) pursuant to Article 58, paragraph 2, letter d) of the Regulation, orders, for the purposes of the information obligation referred to in Article 13 of the Regulation, to provide the data subjects with all the information provided therein;

e) pursuant to Article 58, paragraph 2, letter d) of the Regulation, orders the adoption of appropriate technical and organizational measures to facilitate the exercise of the rights provided for by the data protection legislation and to satisfy, without unjustified delay, the related requests, including the right to object which may be raised "at any time" by the data subject;

f) pursuant to Article 157 of the Code, orders IV Casa to communicate to the Authority, within thirty days from the notification of this order, the initiatives taken to implement the imposed measure; any failure to comply with the provisions of this point may result in the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation.

ORDERS

pursuant to Article 58, paragraph 2, letter i) of the Regulation, IV Casa Firenze Sud di Benedetti Francesco & C. S.a.s., represented by its legal representative, to pay the sum of €10,000.00 (ten thousand) as an administrative pecuniary sanction for the violations indicated in the reasons; it is noted

that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed sanction.

ORDERS

the aforementioned Company, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €10,000.00 (ten thousand), according to the methods indicated in the attachment, within 30 days from the notification of this order, under penalty of the adoption of subsequent enforcement acts in accordance with Article 27 of Law No. 689/1981;

DISPOSES

- a) pursuant to Articles 154-bis of the Code and 37 of Regulation No. 1/2019, the publication of this order as well as, pursuant to Article 166, paragraph 7, of the Code, the publication of this injunction order on the Guarantor's website;
- b) pursuant to Article 17 of the Guarantor's Regulation No. 1/2019, orders the annotation in the internal register of the Authority, provided for by Article 57, paragraph 1, letter u) of the Regulation, of the violations and the measures adopted.

Pursuant to Article 78 of Regulation (EU) 2016/679, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this order may be submitted to the ordinary judicial authority, with an application filed at the ordinary court of the place where the data controller resides, or, alternatively, at the court of the place of residence of the data subject, within thirty days from the date of communication of the order itself, or sixty days if the applicant resides abroad.

Rome, March 13, 2025

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei